

- [1] DEFENDANTS' MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960
and
[2] DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; TO COMPEL PRODUCTION OF DOCUMENTS; COMPEL COMPLIANCE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,460

TENTATIVE RULING: Both matters are CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. B to allow the moving party to provide sufficient notice of the motions.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 16, 2026 was the last day for service, by electronic means, of a notice and papers filed in support of a motion set for hearing on July 14, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) The evidence of service before the Court indicates electronic service on June 29, 2026. As such, the moving party failed to serve the notice and moving papers 18 court days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].) Even if substantive oppositions are filed after the drafting of this Tentative Ruling, the moving party still failed to provide sufficient notice to the Court by failing to *file* the motions 16 court days before the hearing. (See Code Civ. Proc., § 1005, subd. (b).)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and then (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

- [3] DEFENDANTS' MOTION FOR TERMINATING OR ISSUE SANCTIONS AGAINST PLAINTIFF

TENTATIVE RULING: The motion is GRANTED IN PART. The motion for terminating sanctions is DENIED. The motion for issue/evidentiary sanctions is GRANTED. Plaintiff is barred from introducing the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson, and the factfinder shall be instructed to presume that the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson do not contain information supporting Plaintiff's testimony.

The moving party is directed to immediately provide, by telephone call AND email, notice of the Court's tentative ruling system under Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in

effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

The matter originally came on July 2, 2026 by way of Defendants' *ex parte* application. The Court declined to hear that matter on an *ex parte* basis and granted the alternative request to shorten time on the underlying motion for terminating or issue sanctions. Plaintiff's Opposition was ordered due July 7 and Defendants' Reply due July 9.

Defendants move, pursuant to Code of Civil Procedure sections 2023.010 and 2023.030, subdivision (d)(3), 2030.290, subdivision (c),² for an order granting terminating sanctions against Plaintiff. Alternatively, Defendants request evidentiary sanctions, ordering "an adverse inference instruction regarding the alleged health issues inhibiting Attorney Spohn's handling of the Underlying Action." (Mem., 11:14-16.)

B. LEGAL STANDARDS

"[I]f a party ... fails to obey an order compelling inspection, copying, testing, or sampling, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction In lieu of or in addition to that sanction, the court may impose a monetary sanction" (§ 2031.320, subd. (c).) Moreover, "[a] court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (*Ibid.*) Together, they authorize discretionary sanctions "against anyone engaging in conduct that is a misuse of the discovery process," including failure to respond or to submit to an authorized method of discovery and failure to comply with a court order to provide discovery constitutes a misuse of the discovery process. (§ 2023.010, subds. (d), (g).)

Faced with misuse of the discovery process, the Court may impose whatever sanctions are just, including issue sanctions, evidence sanctions, terminating sanctions, and monetary sanctions. (§ 2023.030.) It is the moving party's burden to demonstrate the responding party's failure to obey the earlier discovery order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.) Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for his conduct. (*Ibid.*) Two facts are generally prerequisite to the imposition of non-monetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.)

"The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment." (*Laguna Auto Body v. Super. Ct.* (1991) 231 Cal.App.3d 481, 490, citing *Motown*

² All subsequent statutory references are to the Code of Civil Procedure, unless otherwise specified.

Records Corp. v. Super. Ct. (1984) 155 Cal.App.3d 482, 489.) The sanctions imposed must be tailored to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.)

C. DISCUSSION

The basis for Defendants’ Motion is that Plaintiff (1) has repeatedly refused to comply with her discovery obligations, for which monetary sanctions have been imposed no less than four times, for a total amount of \$9,030, (2) refuses to comply with the May 29, 2026 Order compelling her to comply with her agreement to produce responsive documents, and (3) has made misrepresentations to the Court and Defendants/counsel regarding the existence of the underlying documents and payment of previously-ordered sanctions. (Mem., 9:12-14, citing Declaration of Kristin C. Choi (“Choi Decl.”), ¶¶ 4, 8, 9, Exh. B2.)

1. First Basis

As to the first ground, the Court is familiar with the history of the parties’ discovery disputes and is aware that Plaintiff has had monetary sanctions imposed against her and/or her counsel on multiple occasions, most recently with respect to Plaintiff’s failure to successfully oppose motions as to her deposition testimony and Defendants’ request to compel compliance with document demands. (See 5/29/26 Minute Order.)

2. Second Basis

With respect to the second basis, it is undisputed that Plaintiff has refused to comply with the May 29 Order compelling Plaintiff’s compliance, by June 11, with her agreement to produce text messages and telephone records concerning communications between Plaintiff and Laurie Carlson regarding the malpractice suit. It is clear to the Court that Plaintiff and Plaintiff’s counsel’s representations in February and March 2026 led Defendants to believe that these documents existed in Plaintiff’s possession and that Plaintiff was working on gathering them for the past four months. (Choi Decl., ¶¶ 10, 14, Exh. D, Exh. G, 172:6-24.) Moreover, as held in the May 29 Order, it is clear that those specific documents are responsive to Defendants’ Request for Production of Documents, Set one, served October 6, 2025; and therefore should have accompanied Plaintiff’s responses on November 21, 2025.

Moreover, on June 25, 2026, the Court noted that Plaintiff had already failed to comply with the timely production of responsive documents, and *re-ordered* Plaintiff to produce the documents by 12:00 p.m. on June 26 (“June 26 Order”). (Choi Decl., ¶ 8.) At the *ex parte* hearing, Plaintiff’s counsel represented that he would do his best to comply with the deadline. (*Id.*, ¶ 9.)

Instead of producing those responsive documents as (twice) ordered, Plaintiff produced an *unverified further response* to the subject document requests on June 26, representing that she no longer has access to the cell phone number and account, on which the responsive text messages and phone logs are stored, but believes they might exist within the possession, custody, and control of Verizon under the phone number of 408-274-0213. (*Id.*, ¶ 13, Exh. F; Declaration

of Stacey Cootes (“Cootes Decl.”), ¶ 17, Exh. 1³.) The time to raise that issue was in response to Defendants’ motion to compel compliance with the subject document requests, which resulted in the May 29 Order; not a month after the Court ordered the specific responsive documents produced, or two weeks after Plaintiff’s deadline expired to comply with the Court’s order. Yet, Plaintiff never raised any issue regarding an inability to produce those responsive documents, as Plaintiff did not even file an opposition to Defendants’ motion to compel compliance. (See 5/29/26 Minute Order, p. 3 [“Plaintiff implicitly concedes the foregoing by failing to file a response or opposition.”].)

In Opposition to the present motion, Plaintiff attempts to justify her conduct by arguing that her testimony on February 25, 2026 was an honest mistake, and it was not until her “subsequent investigation” that she realized the communications had been stored on a previous cellular telephone that she no longer possessed after changing phones following Attorney Spohn’s representation of her in the underlying matter. (Opp., 5:21-22, Declaration of Stacey Cootes (“Cootes Decl.”), ¶¶ 13, 15.) Given that Plaintiff’s counsel represented, at a hearing on June 25, that the responsive documents would be produced on June 26, Plaintiff’s “subsequent investigation” apparently did not occur until June 25 or 26. Plaintiff attempts to justify the delay between her February 25 testimony and her June 26 further response by showing that she has experienced serious medical and mental health issues the past four months that have prevent her from fully assisting her counsel in responding to, or complying with, discovery. (Cootes Decl., ¶¶ 1-2.) Plaintiff’s counsel’s only attempt to justify his representations over the past four months regarding the status of Plaintiff’s compliance is to state that, prior to the June 25 *ex parte* hearing, he attempted to meet and confer with Defendants’ counsel to request additional time to complete Plaintiff’s discovery obligations due to Plaintiff’s health issues. (Declaration of Eric Bryan Seuthe (“Seuthe Decl.”), ¶ 14.)

The Court acknowledges Defendants’ showing regarding Plaintiff’s inconsistent testimony between her February 25 deposition, June 26 further verified response and Opposition to the present motion, and her June 29 deposition testimony. (Choi Decl., ¶¶ 10, 14, Exh. D, Exh. G, 172:6-24; Reply, 4:20-26, Reply Declaration of Kristin C. Choi (“Reply Choi Decl.”), Exh. J, PDF p. 73:7-10.) The inconsistencies make the Court question whether Plaintiff’s June 26 *unverified* further response (that she no longer has the cell phone in her possession) is even accurate, as, when Plaintiff was asked at her June 29 deposition why she does not have in her possession the text messages that she shared with Ms. Carlson, Plaintiff only responded that she cleans out her phone all the time to save space. (Reply Choi Decl., Exh. J, PDF p. 73:7-10.)

Moreover, the Court agrees with Defendants that the circumstances behind Plaintiff changing phones, and the timing of that revelation (right before Defendants’ motion for summary judgment deadline) are suspicious, particularly where (1) Plaintiff provides no specifics as to timing or the reason, (2) multiple layers of inconsistent testimony exist, and (3) Plaintiff does not directly address or dispute, in Opposition, Defendants’ claim of improper spoliation/destruction of evidence. It is simply unbelievable, even in the face of Plaintiff’s evidence that she could not

³ The Court notes that Plaintiff’s Opposition and Plaintiff’s Counsel’s Declaration assert that Plaintiff’s June 26 further response is “verified” (see Opp., 6:1-2, 7:28, 9:16; Seuthe Decl., ¶ 12.) However, the evidence to which she cites (the Cootes Decl.) does not state the further response was verified, nor does the exhibit attached thereto contain any such verification. (Cootes Decl., ¶ 17, Exh. 1.)

fully participate in discovery at all relevant times, that Plaintiff and/or Plaintiff's counsel could not have discovered the fact that Plaintiff no longer possesses the phone account or records she referenced in her February 25 deposition at any time prior to June 26, including by June 11 (the May 29 Order deadline) or May 15 (the deadline for Plaintiff's opposition to Defendants' motion to compel compliance). In this sense, the Court finds that Plaintiff's non-compliance with the May 29 Order and June 25 Order was willful—Plaintiff was aware of the May 29 Order, had the ability to obey it, and intentionally chose to change her discovery response instead of complying with the May 29 Order.

While the Court recognizes Plaintiff's contention that Defendants are entitled to subpoena the Verizon records to attempt to obtain the communications Plaintiff has failed to produce, Defendants have lost at least four months of time to do so, through no fault of their own, but instead based on Plaintiff's and Plaintiff's counsel's inexcusable delay and discovery misuse.

3. Third Basis

With respect to the third basis, Defendants take issue with Plaintiff's counsel having represented at the June 25 *ex parte* hearing that a sanctions check *for the full amount owed* had already been placed in the mail and that the *responsive documents* would be produced by June 26 at 12:13 p.m. Defendants contend that neither of those comments were true at the time made, as it is undisputed that the sanctions check Defendants received on June 25 was not for the full amount and, as noted, Plaintiff did not produce *documents* on June 26, but rather a further response (which response is dated June 25, only signed by Plaintiff's counsel) stating that no such documents are in her possession as Plaintiff no longer has access to the phone number and account.

In Opposition, Plaintiff argues that it is an abuse of discretion for a trial court to issue a terminating sanctions for failure to pay a sanction. (Opp., 6:17-26, citing *Newland v. Sup. Ct.* (1995) 40 Cal.App.4th 608, 610.) However, this misses Defendants' point that the basis for sanctions is, in part, Plaintiff's counsel's misrepresentations about the alleged compliance with the sanctions order, which basis Plaintiff does not address in Opposition, other than to say the full amount of sanctions has now been paid, which Defendants continue to dispute. (See Reply Choi Decl., ¶ 4.)

The Court finds, from the foregoing, that Plaintiff and/or Plaintiff's counsel have been less than forthcoming with Defendants and the Court.

4. Conclusion

In sum, the Court finds that all three bases raised by Defendants support the imposition of non-monetary sanctions.

The Court has considered the several factors outlined in *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796 ⁴ in deciding whether and which sanctions to impose for disobedience to discovery orders. In doing so, the Court does not find terminating sanctions, the highest possible sanction, appropriate at this juncture, but finds that evidence/issue sanctions are appropriate.

In support of Defendants' request for evidentiary/issue sanctions, Defendants argue that Plaintiff's theories regarding Attorney Spohn's alleged medical issues are based solely on what Ms. Carlson told Plaintiff and, therefore, the factfinder should be instructed that they are not to consider any evidence of Attorney Spohn having health issues which contributed to his withdrawal. (Mem., 11:17-19, citing Choi Decl., Exh. G, 14:16-16:20.)

The Court's review of Exhibit G to the Choi Decl. indicates that Plaintiff testified that Ms. Carlson, an old employee of Attorney Spohn, told Plaintiff that Attorney Spohn was subject to a 5150 hold in February 2023, just days before Plaintiff wrote a letter to the judge in the Underlying Action. (Exh. G, 14:16-25, 15:8-11, 20-24.) Plaintiff further testified that she did not get information regarding Attorney Spohn being the subject of a 5150 hold from anybody else. (Exh. G, 16:12-14.)

Given that the testimony is limited to Plaintiff receiving from Ms. Carlson information regarding Attorney Spohn being subject to a 5150 hold in February 2023, Defendants' request for the jury to be instructed that they are not to consider *any* evidence of Attorney Spohn having *any* health issues which contributed to his withdrawal, "including not being capable to practice and represent clients as an attorney" is vastly overbroad. (See 7/2/26 Proposed Order, p. 2.)

That said, the Court finds that proper evidentiary/issue sanctions include: (1) barring Plaintiff from introducing the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson, and (2) instructing the factfinder to presume that the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson do not contain information supporting Plaintiff's testimony.

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⁴ These factors include (1) the time that has elapsed since the discovery was served; (2) Whether the party received extensions of time to answer or respond; (3) The number of discovery requests and the burden of replying; (4) The importance of the information sought; (5) Whether the answering party acted in good faith and with reasonable diligence—i.e., whether the answering party was aware of the duty to furnish the requested information and had the ability to do so; (6) Whether the answers supplied were evasive or incomplete; (7) The number of questions remaining unanswered; (8) Whether the unanswered questions sought information that was difficult to obtain; (9) The existence of prior court orders compelling discovery and the answering party's compliance with them; (10) Whether the party was unable to comply with previous orders re discovery; (11) Whether an order allowing more time to respond would enable the responding party to supply the necessary information; and (12) Whether some sanction short of dismissal or default would be appropriate to the dereliction.

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT PURSUANT TO
STIPULATION**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Wells Fargo Bank, N.A. move, pursuant to California Code of Civil procedure 664.6, to vacate the dismissal and enter Judgment pursuant to the Parties' Stipulation.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed February 7, 2025, this Court's Order of February 14, 2025, and the Declaration of Edgar B. Lopez filed in support of the instant motion (Lopez Decl.). (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

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Pamela J. Koussa v. Bill N. McCulloch

25CV002562

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

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In The Matter of Samantha SanFilippo

26CV000714

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Amended Order to Show Cause for Change of Name (OSC) was entered in this matter on June 05, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.